

Aquatic Animals Protection Act, 1961

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Aquatic Animal Conservation Act, 2017

Royal Seal and Date of Publication

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Amending Acts

1. Some Nepal Laws (Amendment and Reorganization) Act, 2020 2020.11.16
2. Administration of Justice Act, 2048 2048.2.16
3. Aquatic Animal Conservation (First Amendment) Act, 2055 2055.10.7
4. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.10.7
5. Some Nepal Laws Amendment and Repeal Act, 2072 2072.6.14
6. Some Nepal Acts Amendment Act, 2072 2072.11.13
7. Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 2074.6.30
8. Some Nepal Acts Amendment to Conform with the Constitution of Nepal Act, 2075 2075.11.19

Act No. 18 of the year 2017

An Act made to provide for the conservation of aquatic animals and other related matters

Preamble: Added by the Some Nepal Laws (Amendment and Reorganization) Act, 2020. Whereas it is desirable to provide for the conservation of aquatic animals and other related matters in order to maintain peace and order and the convenience and economic interest of the general public;

Now, therefore, the Parliament has enacted this Act in the sixth year of the reign of His Majesty King Mahendra Bir Bikram Shah Dev. 1. Short title, extent and commencement: (1) This Act may be called the "Aquatic Animal Conservation Act, 2017."

(2) This Act shall extend throughout Nepal.

(3) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act -

(a) Amended by the First Amendment. "Water" means a lake, pond, stream, river, rivulet, pool, canal, ditch, reservoir, artificial reservoir, wetland, cage installed for fish farming, and water of paddy fields where fish are raised, including their sources.

(b) "Aquatic animal" means any living being living within water.

(c) Amended by the First Amendment. "Local authority" means the Chief District Officer of the concerned district.

(c1) Added by the First Amendment. "Technical officer" means an employee designated by the Government of Nepal to carry out fishery development, fishery research, or fishery extension work.

(c2) Added by the First Amendment. "Fish ladder" means an alternative passage placed in water for the movement of aquatic animals.

(d) "Private water" means a lake, pond, pool, reservoir or artificial reservoir located on land for which a private individual pays land revenue or land tax to Amended by the Some Nepal Acts Amendment to Conform with the Constitution of Nepal Act, 2075. the local level and which is under that individual's ownership and use.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed by the rules made under this Act. 3.

Prohibition on methods of catching and killing aquatic animals: No person shall, with the intention of catching or killing any aquatic animal present in any water, knowingly use any kind of "electric current, explosive substance or poisonous substance" in such water or its vicinity Deleted by the First Amendment. Provided that, nothing in this section or any matter thereunder shall prevent the owner of any private water from using any method, other than releasing a poisonous substance for the purpose of catching or killing aquatic animals in his/her own private water, provided that no damage is caused to aquatic animals in any other water. 3A. Added by the First Amendment. Not to obstruct or dismantle fish ladders and structure gates: No person other than an authorized person shall obstruct or dismantle the gates of fish ladders, dams, or any other kind of structures in water for the conservation of aquatic animals. 4. Power of Government of Nepal to prohibit catching, killing or injuring certain specified types of aquatic animals: The Government of Nepal may, by an order published in the Nepal Gazette, in that same order - (a) prohibit any person from knowingly catching, killing or injuring aquatic animals of the species specified therein without the permission of the Government of Nepal or the local authority; and (b) prohibit any person from knowingly catching, killing or injuring any aquatic animals during the specified season and under specified conditions. Provided that nothing in this section or any matter under this section shall apply in relation to aquatic animals found in the private water of any particular person. 5. Power of Government of Nepal to prohibit catching, killing or injuring aquatic animals in certain specified waters: The Government of Nepal may, by an order published in the Nepal Gazette, prohibit any person from knowingly catching, killing or injuring aquatic animals in the water of places specified in that same order without the permission of the Government of Nepal or the local authority, and the Government of Nepal shall have exclusive rights over all aquatic animals in the water of such places. Provided that the Government of Nepal shall not issue such an order in relation to the private water of any particular person. 5A. Added by the First Amendment. Not to use poison other than safe poison: If a poisonous substance is required to be used for the purpose of catching or killing aquatic animals, no type of poison other than safe poison shall be used for that purpose. Explanation: For the purpose of this section, "safe poison" means a chemical or herbal substance recommended by the technical officer. 5B. Added by the First Amendment.

Other provisions relating to aquatic animals: (1) The body constructing a dam for electricity, drinking water, irrigation or any other purpose shall, as far as possible, construct a fish ladder to prevent obstruction to the movement of aquatic animals. If it is not possible to construct a fish ladder, arrangements shall be made for an aquatic animal hatchery and aquatic animal nursery for artificial breeding of aquatic animals in or around such area. (2) Prior notice shall be given to the technical officer while carrying out construction work pursuant to sub-section (1). 5C. Added by the Some Nepal Acts Amendment to Conform with the Constitution of Nepal Act, 2075. Conservation of aquatic animals by Province and Local Level: The province and local level shall conserve aquatic animals within their respective areas. 6. Rights of citizens: Subject to section 3, nothing in this Act shall be deemed to prohibit any citizen from killing or catching aquatic animals in other waters, except during the season, conditions and places prohibited by orders issued under sections 4 and 5. 7. Amended by the First Amendment. Provisions relating to contract: (1) The Government of Nepal may make contractual

arrangements for the work of catching and killing one or more types of aquatic animals in any water under its control. (2) Amended by the Some Nepal Acts Amendment to Conform with the Constitution of Nepal Act, 2075. Subject to the standards issued under sub-section (3), the local level may, for the work of catching and killing aquatic animals other than those prohibited under section 4 or those located in specific waters under section 5, make a contract in accordance with law. (3) When awarding a contract under sub-section (1) or (2), the standards for the equipment used to catch or capture aquatic animals shall be as prescribed. (4) The procedure for awarding a contract under sub-section (1) Deleted by the Some Nepal Acts Amendment to Conform with the Constitution of Nepal Act, 2075. shall be as prescribed. 8. Penalties: (1) Amended by the First Amendment. A person who violates or abets the violation of section 3 or 3A shall, by order of the local authority, taking into account the gravity of the offense, be liable to pay compensation equal to the amount of the loss or damage caused, and Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. shall be punished with imprisonment for up to six months or a fine of up to five thousand rupees, or both.

While assessing the loss or damage, the technical officer shall be involved.

(2) A person who violates or abets the violation of any provision of an order issued under section 4 or section 5 shall, by order of the local authority, be fined Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. up to two thousand rupees.

(3) Without prejudice to the penalties mentioned in sub-sections (1) and (2), a person who violates or abets the violation of any provision of this Act or of the rules made or orders issued under this Act shall, by order of the local authority, be fined Amended by the First Amendment. up to one thousand rupees.

(4) All weapons, materials and articles in the possession of a person found guilty of an offense under this Act and related to that offense shall be confiscated by order of the local authority.

(5) If the fine imposed under this Act is not paid by the convict within the prescribed period, action shall be taken as for government arrears and recovered from him/her. 9. Appeal: Deleted by the First Amendment. A person dissatisfied with the order of penalty given by the local authority under section 8 may, within thirty-five days from the date of receipt of notice of such order, appeal to Amended by the Some Nepal Acts Amendment Act, 2072. the District Court. Provided that, such appeal shall not be maintainable unless the appellant deposits the amount of the fine determined to be payable or furnishes a security bond of that amount. 10. Amount recovered as fine and confiscated weapons, materials and articles to be deposited in government fund: It shall be the duty of the local authority to deposit the amount recovered as fine under this Act, and to sell by auction, except for weapons, explosives and poisonous substances, all other articles among the confiscated weapons, materials and articles, convert them into cash, and deposit them in the local revenue office or Nepal Rastra Bank; and to handle the weapons, explosives and poisonous substances in accordance with the prevailing Nepalese law. 11. Powers of local authority: When conducting proceedings on cases under this Act, the local authority shall have all the powers of a court of first instance, including the power to record statements and depositions, examine evidence, and require the submission of documents. 12.

Power to arrest and seize: Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. (1) If any person is seen doing or causing to be done any act contrary to this Act or the rules made or orders issued under this Act, or if evidence thereof is obtained, the local authority may arrest such person in accordance with an arrest warrant issued by it; and if the offender is not immediately arrested, or if there is reasonable cause to believe that such person will flee, escape, or destroy evidence, proof, or

exhibits, or if an absconding person related to the offense is found, or if the person is caught in the act or is in the presence of the local authority, the local authority may immediately issue an emergent arrest warrant, arrest such person, and also seize the weapons, materials and articles used in the offense. Any employee deployed by the local authority or any police officer shall, within twenty-four hours, excluding the time required for travel, produce the arrested person and the seized weapons, materials and articles before the local authority. (2) After the production pursuant to sub-section (1), Amended by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074. the local authority shall, within twenty-four hours, take the necessary action, and if the seized articles are perishable, they shall be auctioned in the presence of the arrested person and the proceeds kept as deposit. 13. To be in accordance with prevailing law: If any act prohibited by this Act is committed, or if any person acts in accordance with this Act in a matter to which no section of this Act applies, and such act causes any loss or damage to anyone, nothing in this Act shall be deemed to impede the application of or action under prevailing Nepalese law. 14. Power to make rules: The Government of Nepal may make rules for the purpose of implementing the objectives of this Act. 15. Repeal: (1) Number 25 of the Muluki Ain (General Code) is hereby repealed. (2) All Nepalese laws inconsistent with this Act and the rules made or orders issued under this Act shall be deemed to have been repealed or, as the case may be, amended to be consistent therewith.